STATE OF MICHIGAN

BEFORE THE MICHIGAN PUBLIC SERVICE COMMISSION

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In the matter of the application of **SEMCO ENERGY GAS COMPANY** for a certificate of public convenience and necessity to construct and operate the Keweenaw Connector Pipeline.	))))))	Case No. U-21780

At the May 15, 2025 meeting of the Michigan Public Service Commission in Lansing, Michigan.

PRESENT: Hon. Daniel C. Scripps, Chair
Hon. Katherine L. Peretick, Commissioner
Hon. Alessandra R. Carreon, Commissioner

ORDER APPROVING SETTLEMENT AGREEMENT

On August 30, 2024, SEMCO Energy Gas Company (SEMCO) filed an application, with supporting testimony and exhibits, pursuant to Public Act 9 of 1929 (Act 9), MCL 483.101 *et seq*., for a certificate of public convenience and necessity to construct and operate a new, approximate 30-mile, 12-inch-diameter, steel natural gas transmission pipeline, known as the Keweenaw Connector Pipeline. Per the application, the pipeline will begin near Three Lakes, Michigan, where it will originate at a proposed interconnection with an existing Northern Natural Gas mainline transmission pipeline, and will then follow an existing American Transmission Company (ATC) electric transmission right-of-way to the northwest and west for approximately 8.5 miles to Old U.S. Highway 41. The pipeline will then follow Old U.S. Highway 41 to the north/northwest for approximately 1.5 miles where the pipeline will continue to the northwest along another

existing ATC electric transmission line for approximately 16.75 miles to Krolik Road, at which point the pipeline will then follow Krolik Road 0.5 miles west then turn north and follow Grist Mill Road for 2.5 miles to State Highway M-38 to the proposed interconnect with an existing SEMCO pipeline in Baraga, Michigan. The application further provides that the pipeline will provide system redundancy and mitigate the company's supply deliverability and reliability concerns in its Upper Peninsula West service area, with construction proposed to begin as soon as practicable after authorization is secured. SEMCO also included a five-year revenue requirement estimate for the project but stated that it is not seeking ratemaking treatment in this case. Application, pp. 1-3; Exhibit A-10.

On October 17, 2024, a prehearing conference was held before Administrative Law Judge James M. Varchetti (ALJ). At the prehearing conference, the ALJ recognized the intervention by right of the Michigan Department of Attorney General (Attorney General) and also granted intervenor status to landowner Jordan W. Murray. SEMCO and the Commission Staff (Staff) also participated in the proceeding.

On December 9, 2024, the ALJ issued a protective order for use in the matter.

On January 13, 2025, the Staff filed testimony and exhibits, and on March 19, 2025, Mr. Murray withdrew as an intervenor in the case.

On March 20, 2025, the ALJ conducted an evidentiary hearing wherein testimony and exhibits were bound into the record without cross-examination. Subsequently, the parties submitted a settlement agreement resolving all issues in the case, with the company and the Staff as signatories and with the Attorney General indicating her non-objection to the settlement agreement.

The Commission has reviewed the settlement agreement and finds that the public interest is adequately represented by the parties who entered into the settlement agreement. The Commission

further finds that the settlement agreement is in the public interest, represents a fair and reasonable resolution of the proceeding, and should be approved.[1]

The Commission additionally finds that the map, route, and type of construction of the project are reasonable and should be approved, subject to minor route deviations that the company may find necessary during construction. As agreed by the signatories, minor route deviations "shall be limited to alterations in locations which do not involve the impact of additional unnoticed landowners to this case." Settlement agreement, p. 5. The Commission further agrees with the signatories and finds that the project will serve the public interest by assuring the continued necessary delivery of natural gas to serve the needs of SEMCO's customers and that the approved route provides the most direct, reasonable, and economical route. *Id*., p. 4. Additionally, as agreed by the signatories, SEMCO will obtain all necessary permits and property rights before construction begins on individual route segments for the project. *Id*., p. 6.

As described in the company's environmental assessment report, attached to its application as Exhibit A-3 and as referenced in the settlement agreement, construction methods will be used to minimize environmental impacts, such as horizontal directional drilling (or other trenchless methods) under major waterways, timber matting through wetlands, best management practices for soil erosion and sediment control, and timing of construction to avoid sensitive resources; temporary impacts will be restored to preconstruction contours and revegetated with native species; and unavoidable impacts will be mitigated, with compensatory mitigation for any forested wetlands converted to another wetland type. The environmental assessment report further describes alternative options considered for the project, concluding that the proposed route was

[1] As there are no "paragraphs 8I, 8L, 8M and 8N" in the settlement agreement, it is the Commission's belief and understanding that this reference in the settlement agreement was instead intended by the parties to reflect paragraphs 7I, 7L, 7M, and 7N. Exhibit A, p. 8.

selected as the preferred route because it was determined to be the least environmentally damaging practicable alternative when considering the purpose and need of the project.

Given the above, the Commission agrees with the signatories and finds that there will be minor impairment to the environment if the project is constructed as proposed but that there is no other feasible and prudent alternative to this impairment and that, given the construction methods and mitigation steps the company will employ to minimize adverse environmental impacts, any environmental impairment caused by the project is *de minimis* and consistent with the promotion of the public health, safety, and welfare in light of the state's paramount concern for the protection of its natural resources from pollution, impairment, or destruction. Settlement agreement, p. 4. The Commission further finds that the application, testimony, exhibits, and settlement agreement support and satisfy the required agency review and environmental obligations of the Commission that arise from the Michigan Environmental Protection Act (MEPA), MCL 324.1701 *et seq*., and the Michigan Supreme Court's application of MEPA in *Mich State Hwy Comm v Vanderkloot*, 392 Mich 159, 185; 220 NW2d 416 (1974). The Commission notes, however, that a finding of public convenience and necessity pursuant to Act 9 is not a determination that the project complies with any other applicable statutes or environmental reviews.

The Commission also notes that "[o]n September 27, 2024, the Commission's Legislative and Tribal Liaison emailed the Tribes of Michigan with an application overview and invitation for an informal consultation, in accordance with Executive Directive 2019-17." 2 Tr 100; *see also*, Exhibit A-5. Correspondence and further information as a result of this invitation, including the holding of a subsequent informal consultation, can be seen at 2 Tr 100-103, 159-160, and within Exhibits S-6, S-7, S-8, and S-9.

Finally, the Commission highlights SEMCO's commitment to adhere to the company's Unanticipated Discoveries Plan in the event of an unanticipated discovery of archaeological or paleontological resources, or human remains, during the construction activities for the project. 2 Tr 41; Exhibit A-3, Appendix E.

THEREFORE, IT IS ORDERED that:

A. The settlement agreement, attached as Exhibit A, is approved.

B. The route and type of construction of the project are approved, allowing for minor route deviations as described in the settlement agreement. As set forth in the settlement agreement, SEMCO Energy Gas Company shall obtain all necessary permits and property rights before construction begins on individual route segments for the project.

C. Within 60 days after completion of construction, SEMCO Energy Gas Company shall file a completion report containing an "as built" map of the project and pressure test data.

D. If SEMCO Energy Gas Company provides transportation for others, it shall file with the Commission signed transportation contracts and shall provide transportation in a nondiscriminatory manner.

E. Upon abandonment or deactivation, the project shall be abandoned in accordance with the Michigan Gas Safety Standards, MCL 483.151 *et seq*.

The Commission reserves jurisdiction and may issue further orders as necessary.

Any party desiring to appeal this order must do so in the appropriate court within 30 days after issuance and notice of this order, pursuant to MCL 462.26. To comply with the Michigan Rules of Court's requirement to notify the Commission of an appeal, appellants shall send required notices to both the Commission's Executive Secretary and to the Commission's Legal Counsel. Electronic notifications should be sent to the Executive Secretary at LARA-MPSC-Edockets@michigan.gov and to the Michigan Department of Attorney General - Public Service Division at sheac1@michigan.gov. In lieu of electronic submissions, paper copies of such notifications may be sent to the Executive Secretary and the Attorney General - Public Service Division at 7109 W. Saginaw Hwy., Lansing, MI 48917.

MICHIGAN PUBLIC SERVICE COMMISSION

Daniel C. Scripps, Chair

Katherine L. Peretick, Commissioner

Alessandra R. Carreon, Commissioner

By its action of May 15, 2025.

Lisa Felice, Executive Secretary

EXHIBIT A

STATE OF MICHIGAN

BEFORE THE MICHIGAN PUBLIC SERVICE COMMISSION

*****

In the matter of the application of **SEMCO ENERGY GAS COMPANY** for a certificate of public convenience and necessity to construct and operate the Keweenaw Connector Pipeline.	))))))	Case No. U-21780

SETTLEMENT AGREEMENT

Pursuant to Section 78 of the Administrative Procedures Act of 1969, as amended, MCL 24.278 and Rule 431 of the Michigan Administrative Hearing System's Administrative Hearing Rules, R 792.10431, SEMCO Energy Gas Company ("SEMCO Gas" or the "Company"), Attorney General Dana Nessel ("Attorney General"), and the Michigan Public Service Commission Staff ("Staff") agree as follows:

1. On August 8, 2024, SEMCO, pursuant to 1929 PA 9, MCL 483.101 *et seq*., ("Act 9") and Rule 31 of the Filing Procedures for Electric, Water, Steam, and Gas Utilities, R 460.2031(1), filed its application and supporting testimony and exhibits for a Certificate of Public Convenience and Necessity to Construct and Operate a new natural gas transmission pipeline, approximately 30 miles in length, 12-inch diameter, known as the Keweenaw Connector Pipeline ("KCP") between Three Lakes and Baraga, Michigan.

2. On September 16, 2024, the Michigan Public Service Commission ("MPSC" or the "Commission") Executive Secretary issued the Notice of Hearing scheduling a prehearing conference for October 17, 2024. SEMCO Gas was directed to mail the Notice of Hearing to each landowner from whom it had not acquired property rights for the KCP, and to all cities, incorporated

villages, townships, and counties which may be traversed by the KCP and all federally recognized Tribes in Michigan with a land claim or reserved treaty rights within the proposed route of the KCP. Additionally, SEMCO Gas was directed to have the Notice of Hearing published in newspapers of general circulation in its gas service area.

3. On October 2, 2024, SEMCO Gas filed its proof of mailing and affidavits of publication from The Mining Journal and the Detroit Free Press. Additionally, on October 16, 2024, the Company filed its proof of serving a copy of its filed direct testimony and exhibits on intervenors, Attorney General and Jordan Murray.

4. On October 17, 2024 the prehearing conference was held with Administrative Law Judge ("ALJ") James M. Varchetti presiding. SEMCO Gas and the Staff were in attendance, and the Attorney General and Mr. Murray[1] an interested landowner, were granted intervention. Subsequently, Mr. Murray withdrew his intervention.

5. Both the Staff and the Attorney General conducted discovery. Specifically, the Staff reviewed the Company's filings in this proceeding with a focus on the project route, necessity, engineering specifications, and environmental impact. On January 13, 2025, the Staff filed its direct testimony and exhibits making 19 recommendations relating to approval of the KCP. The Attorney General and Mr. Murray did not file a direct case in this matter.

6. On March 20, 2025, an evidentiary hearing was held before ALJ Varchetti where SEMCO Gas and the Staff bound and admitted pre-filed testimony and exhibits into the record and

[1] At the prehearing, the Company advised that it proposed route for the KCP did not cross Mr. Murray's property, however, the Company mailed Notice of the Hearing to Mr. Murray as a precautionary measure should other parties request a change in the route that could then include property outside of the Company's proposed route (1 TR p 6, LL 17-25 – p 7, L 1).

the parties waived cross-examination in consideration of the understandings reached in this settlement agreement.

7. The parties have engaged in settlement discussions and have settled on all contested issues in Case No. U-21780 as follows:

A. The parties agree that it is in the public convenience and necessity for SEMCO Gas to construct and operate a 30 mile, 12-inch diameter natural gas transmission pipeline known as the KCP. The Approved Route of the KCP is generally described as beginning near Three Lakes, Michigan where it will originate at the proposed interconnection with an existing Northern Natural Gas mainline transmission pipeline. The KCP will then follow an existing American Transmission Company electric transmission right-of-way to the northwest and west for approximately 8.5 miles to Old U.S. Highway 41. The KCP will follow Old U.S. Highway 41 to the north/northwest for approximately 16.75 miles to Krolik Road. The KCP will then follow Krolik Road 0.5 miles west then turn north and follow Grist Mill Road for 2.5 miles to State Highway M-38 to the proposed interconnection with an existing SEMCO Gas pipeline. The Approved Route is more specifically described and depicted in Attachment 1 (identified in the record as Approved Route Plat) hereto, and is divided into four "Segments"- Segment 1: the Gate at Northern Natural Gas to MLV1, Segment 2: MLV1 to MLV2, Segment 3: MLV2 to MLV3, and Segment 4: MLV3 to the Gate with SEMCO Gas's transmission pipeline near Baraga, MI as show in Attachment 1.

B. The parties agree that SEMCO Gas's direct case as filed in this docket satisfies the requirements of Act 9.

C. The parties agree that SEMCO Gas will construct the KCP utilizing API 5L PSL 2 pipe and will construct and operate the Pipeline in a manner that meets or exceeds applicable codes, standards, and construction practices, including those contained in the Michigan Gas Safety Standards, MCL 483.152 et seq.

D. The parties agree that the KCP will serve the public interest, as it is necessary to assure the continued necessary delivery of natural gas to serve the needs of SEMCO Gas's customers. The Approved Route, as described in paragraph 8A and depicted in Attachment 1 herein, provides the most direct, reasonable, and economical route and is in the public convenience and necessity.

E. SEMCO Gas has undertaken an environmental assessment for the KCP. The parties agree that the construction of the KCP will have no significant adverse impact on the environment and that any impairment to the environment resulting from the installation will be *de minimis* and is consistent with the promotion of the public health, safety, and welfare in light of the State of Michigan's paramount concern for the protection of its natural resources from pollution, impairment, or destruction. A copy of the Environmental Impact Report is Exhibit A-3. The parties agree that the Commission should find that the direct testimony of Dustin A. Youngs and Exhibit A-3 satisfy the required agency review and environmental obligations that inure from the Michigan Environmental Protection Act, Part 17 of the Natural Resources Environmental Protection Act, MCL 314.101 *et seq*., ("MEPA") and the Michigan Supreme Court's application of MEPA in *State Hwy Comm v Vanderkloot*, 392 Mich 159 (1974). This does not bind the findings and determination of the applicable state and county authorities referenced in paragraph 8J herein.

F. The parties agree that the KCP is designed and routed in a reasonable manner. It is understood that the KCP will be constructed within the Approved Route, however, it is also understood that the Commission should allow for Minor Route Deviations that SEMCO Gas determines is appropriate to address concerns such as unforeseen environmental, archaeological issues, and/or landowner concerns within SEMCO Gas property or with the consent of private landowners or the relevant authority over public rights-of-way. Minor Route Deviations shall be limited to alterations in locations which do not involve the impact of additional unnoticed landowners in this case. It is further understood that Commission approval is not required for any Minor Route Deviations as addressed in this paragraph and in paragraph 8H.

G. SEMCO Gas agrees to reference the 1999 Interstate Natural Gas Association of America (INGAA) publication, Temporary Right-of-Way Width Requirements for Pipeline Construction, or similar industry standards, for guidance when determining the recommended temporary workspace and permanent easement widths for the KCP. If the calculations in the INGAA publication, or other relevant industry standards, are determined by SEMCO Gas to not be appropriate for the KCP, the parties agree that SEMCO Gas shall not be required to utilize such standards when calculating the easement widths for the KCP.

H. For property that SEMCO Gas must acquire a Property Right, SEMCO Gas will work with a landowner to resolve the location of the KCP provided a mutually beneficial location or alternative location (i) is no more than 200 feet from the centerline of the Approved Route; (ii) does not result in crossing the property of an adjacent landowner who was not mailed notice of this proceeding according to the MPSC's September

16, 2024 directives; (iii) does not result in changing the Approved Route or agreed/alternative route/location on any adjacent parcel except where adjacent landowners agree to the reroute of the KCP across both parcels of land; (iv) does not result in SEMCO Gas losing the benefit of rights already granted and paid; (v) does not affect the safety, operation, and route limitations; and (vi) does not require any new or additional, or amendments to, any permit, studies or approvals. It is agreed that alternate locations that meet these conditions are considered Minor Route Deviations.

I. SEMCO Gas agrees that it will secure all Property Rights within an individual route segment of the KCP prior to beginning construction of that segment of the KCP. Construction of that segment may be concurrent with construction of one or more other segments so long as all the Property Rights/easements for a given segment have been secured. A Property Right is defined as all interests in real property, including easements, which are necessary for the construction and operation of the KCP.

J. SEMCO Gas will secure all necessary federal, state, local, and tribal permits prior to commencing construction of the KCP. SEMCO Gas will consult with the Escanaba and Lake Superior Railroad authority to determine the most appropriate construction technique for railroad crossings.

K. SEMCO Gas agrees to construct the KCP with a minimum five feet depth of cover within all agricultural areas of the Approved Route of the KCP as defined by SEMCO Gas's Environmental Assessment Report, and to plant distributed areas with plant species native to the impacted areas.

L. SEMCO Gas and MPSC Staff met with the American Petroleum Institute ("API") on February 7, 2025 to discuss API's Conservation Program on pipeline rights-of-

way. SEMCO Gas agrees to refer to API's Conservation Program for guidance on the restoration activities associated with the KCP.

M. SEMCO Gas will refer to the API Recommended Practice 1185, first edition: Pipeline Public Engagement, as guidance when conducting all future public engagement activities associated with the KCP through the construction and restoration period.

N. SEMCO Gas will request the Michigan State Historic Preservation Office ("SHPO") perform an Archaeological Site File Review. If the File Review is conducted and within a reasonable timeframe, the Company agrees to conduct an Archaeological Survey along any portions of the route as indicated by the File Review. SEMCO Gas will request Department of Natural Resources Archaeology and the SHPO to review its Unanticipated Discoveries Plan. SEMCO Gas will comply with the Michigan's Freedom of Information Act's exemption to treat sensitive archaeological site information confidentially.

O. Regarding engineering, surveying, and inspecting of the KCP, SEMCO Gas agrees:

1) To utilize ACVG/DCVG tools to assess for coating faults and will remediate faults found to present areas of future corrosion prior to completing the pressure test of the pipeline.

2) No later than three months after the in-service date of the pipeline, SEMCO Gas will conduct an above-ground electrical survey of the KCP for the purpose of identifying defects in the pipeline coating that could cause future corrosion. All detected anomalies that become anodic when the cathodic protection system is off shall be remediated within one year

after detection. Additional external corrosion test stations will be placed, as necessary, at any identifiable and significant dips in electric potential in accordance with 49 CFR 192.469 within 6 months following the survey.

3) No later than one year after the in-service date of the KCP, SEMCO Gas will conduct an in-line inspection of the KCP. The remediation of dents shall occur in accordance with the latest 49 CFR Part 192 Subpart O and ASME B31.8S versions current as of the time of project completion.

4) SEMCO Gas will perform a GPS survey to record the location of all welds, bends, and bore profiles.

P. The parties understand that the terms set forth in paragraphs 8I, 8L, 8M and 8N were not contemplated in the projected cost as presented in SEMCO Gas's direct case and may require additional investment.

Q. Given the record in this case and the understandings reached in this settlement agreement, the parties agree that the KCP when constructed and operated will serve the convenience and necessities of the public.

8. This settlement agreement is entered into for the sole and express purpose of reaching a compromise among the parties. All offers of settlement and discussions relating to this settlement are considered privileged under MRE 408.

9. This settlement agreement is based on the facts and circumstances of this case and is intended for final disposition of Case No. U-21780. So long as the Commission approves this settlement agreement without modification, the parties agree not to appeal, challenge, or otherwise contest the Commission order approving this settlement agreement.

10. The settlement agreement is not severable. Each provision of this settlement agreement is dependent upon all other provisions of this settlement agreement. If the Commission rejects or modifies this settlement agreement or any provision of this settlement agreement, this settlement agreement will be deemed to be withdrawn, shall not constitute any part of the record in this proceeding or be used for any other purpose, and shall be without prejudice to the pre-negotiation positions of the parties.

11. The parties agree that approval of the settlement agreement by the Commission will aid in the expeditious resolution of this proceeding and would be reasonable, prudent and in the public interest.

12. The parties agree to waive Section 81 of the APA, MCL 24281, as it applies to the issues resolved by this settlement agreement if the Commission approves this settlement agreement without modification.

SEMCO ENERGY GAS COMPANY

Sherri A. Wellman

Digitally signed by: Sherri A. Wellman
DN: CN = Sherri A. Wellman email = wellmans@millercanfield.com C = US O = Miller Canfield
Date: 2025.03.19 14:56:44 -04'00'

Dated: March 20, 2025 By:_____

Its Attorney
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(517) 487-2070

MICHIGAN PUBLIC SERVICE COMMISSION STAFF

Dated: March 20, 2025

By: Michael J. Orris 2025.04.15 13:03:35 -04'00'

Its Attorney
Michael J. Orris (P51232)
Assistant Attorneys General
Public Service Division
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ATTORNEY GENERAL DANA NESSEL

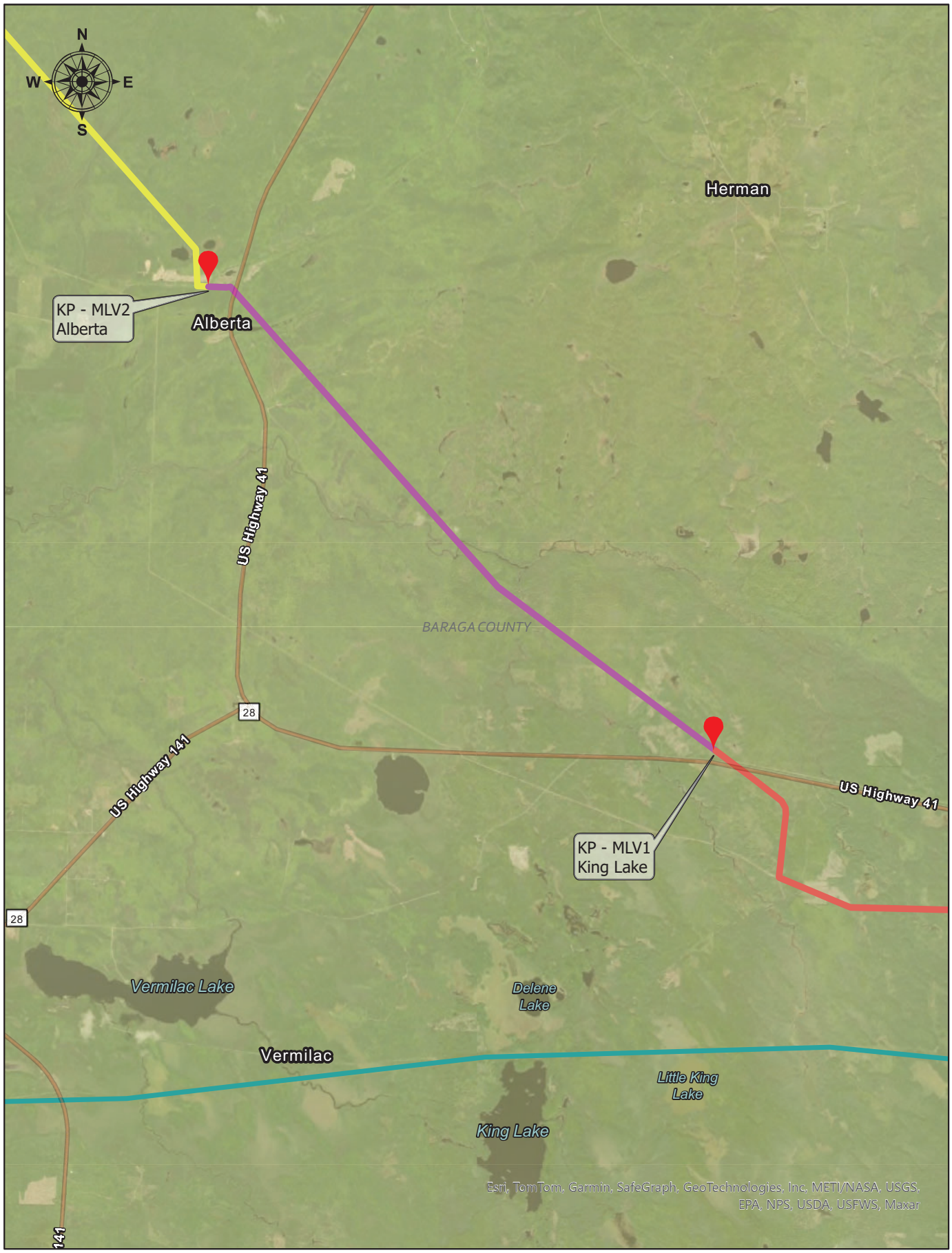
By signing below the Attorney General does not join but affirms that she does not object to this settlement agreement.

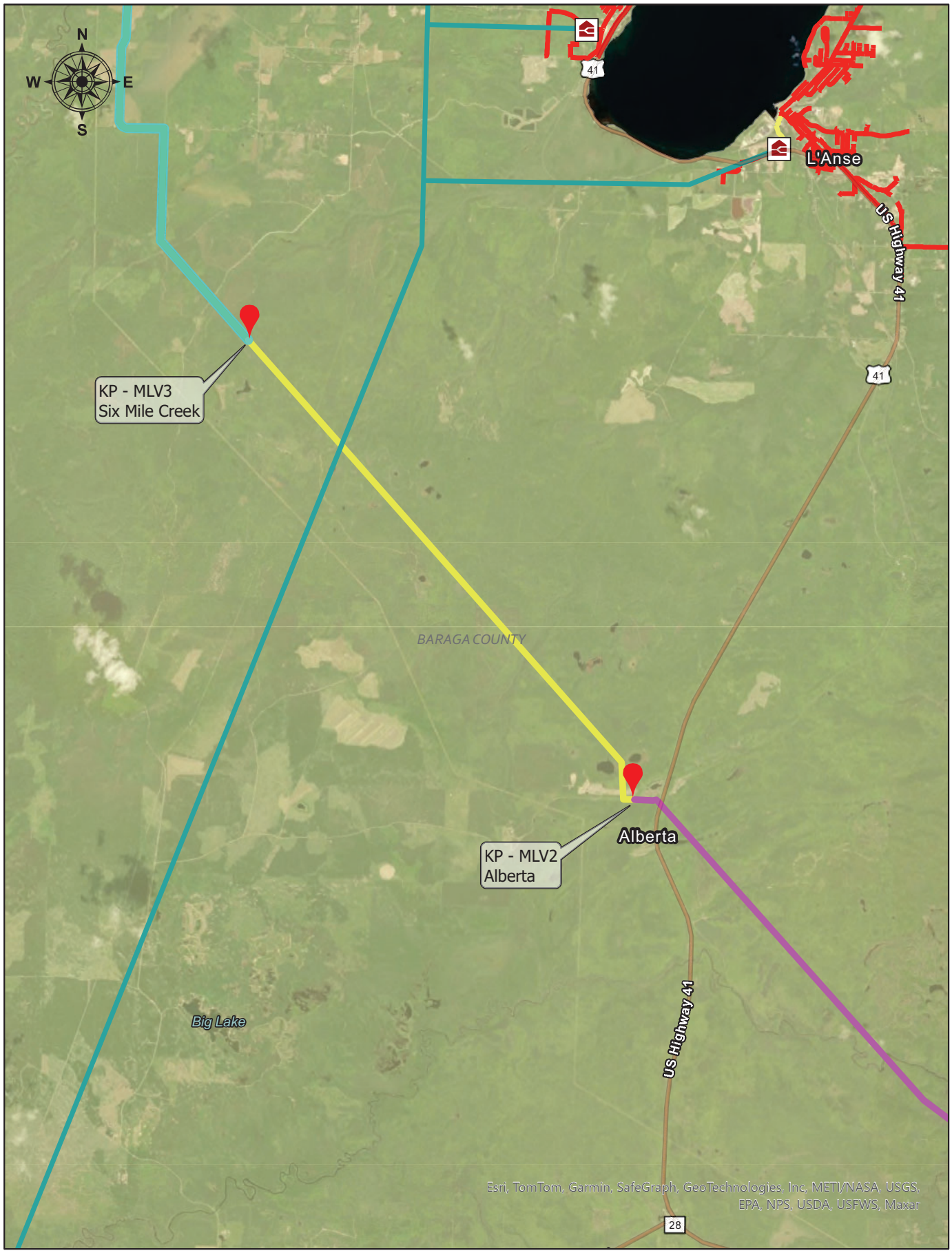
Dated: March 20, 2025

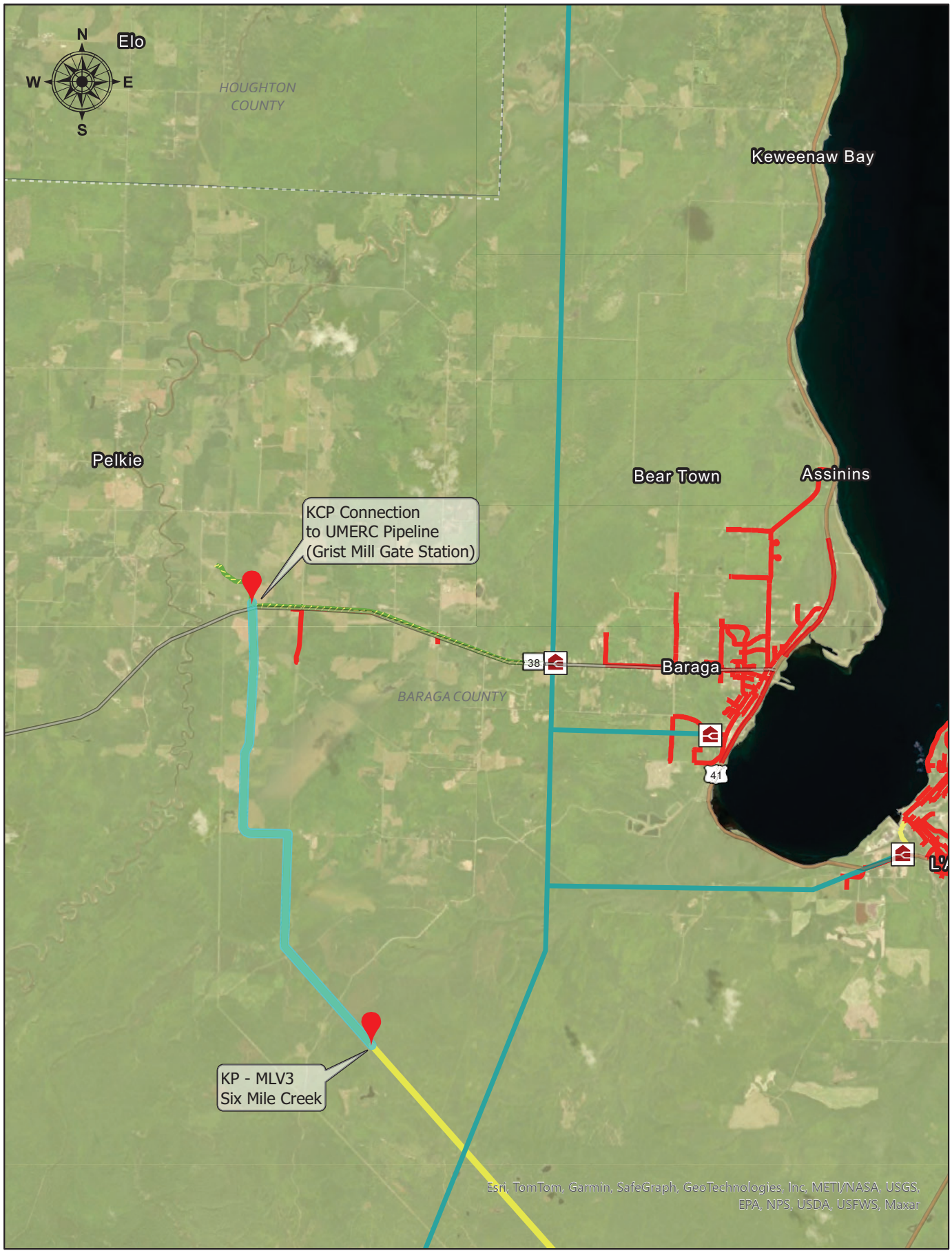
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Loon Lake
KP - MLV1
King Lake
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Three Lakes
Gate Station
w/Odorizer
Mud Lake
Earthstar Geographics, Esri, TomTom, Garmin, SafeGraph, GeoTechnologies, Inc, METI/NASA, USGS, EPA, NPS, USDA, USFWS


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KP - MLV2
Alberta
Alberta
US Highway 41
BARAGA COUNTY
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US Highway 141
US Highway 41
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King Lake
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Vermilac Lake
Delene
Lake
Vermilac
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King Lake
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EPA, NPS, USDA, USFWS, Maxar
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Six Mile Creek
BARAGA COUNTY
Alberta
KP - MLV2
Alberta
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Esri, TomTom, Garmin, SafeGraph, GeoTechnologies, Inc, METI/NASA, USGS, EPA, NPS, USDA, USFWS, Maxar
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HOUGHTON COUNTY
Keweenaw Bay
Pelkie
Bear Town
Assinins
KCP Connection to UMERC Pipeline (Grist Mill Gate Station)
38
Baraga
BARAGA COUNTY
41
KP - MLV3 Six Mile Creek
Esri, TomTom, Garmin, SafeGraph, GeoTechnologies, Inc, METI/NASA, USGS, EPA, NPS, USDA, USFWS, Maxar

P R O O F O F S E R V I C E

STATE OF MICHIGAN)

Case No. U-21780

County of Ingham)

Brianna Brown being duly sworn, deposes and says that on May 15, 2025 A.D. she electronically notified the attached list of this **Commission Order via e-mail transmission**, to the persons as shown on the attached service list (Listserv Distribution List).

Brianna Brown

Subscribed and sworn to before me
this 15th day of May 2025.

Angela P. Sanderson
Notary Public, Shiawassee County, Michigan
As acting in Eaton County
My Commission Expires: May 21, 2030

Service List for Case: U-21780

Name	On Behalf Of	Email Address
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